

12.	25CV1097	PHILLIP LIIMATTA ET AL VS. JOHN WILLIAM EVANS ET AL
MOTION FOR PROTECTIVE ORDER AND SANCTIONS		

Pursuant to the Court's tentative ruling issued on July 17, 2026, the Parties filed a Joint Status Report on August 21, 2026.

MOTION FOR PROTECTIVE ORDER – JOHN WILLIAM EVANS

Defendant, John William Evans ("Defendant"), moves for an order limiting Plaintiff, Lauren Liimatta ("Plaintiff"), Special Interrogatories, Set One, and Inspection Demands, Set One (collectively the "Requests") served on February 22, 2026. Defendant's motion originally had the following Requests at issue: Special Interrogatories numbers 90, 91, 92, 93, 94, 95, 99, 100, 101, 102, 103, 104, 105, 106, and Inspection Demands Nos. 17, 18, 19, 20, 21, 22, 23, 24, 25, 62, 63. Defendant seeks sanctions in the amount of \$1,740.00.

The Status Report identifies all Special Interrogatory Requests remain at issue, as well as Inspection Demands Nos. 18, 19, 20, 21, 22, 23, 62, 63. The Status Report did not explain the amount of monetary sanctions sought and the reasons why as required by the Court's prior tentative ruling.

Special Interrogatories

SPECIAL INTERROGATORY NO. 90: State all facts RELATING TO any negative reviews, complaints, claims, expressions of concerns, or objections that YOU ever received from any customer or property owner RELATING to YOUR WORK during the last ten (10) years.

SPECIAL INTERROGATORY NO. 91: IDENTIFY all PERSONS with knowledge of facts RELATING TO any negative reviews, complaints, claims, expressions of concerns, or objections that YOU ever received from any customer or property owner RELATING to YOUR WORK during the last ten (10) years.

SPECIAL INTERROGATORY NO. 92: IDENTIFY all DOCUMENTS RELATING TO any negative reviews, complaints, claims, expressions of concerns, or objections that YOU ever received from any customer or property owner RELATING to YOUR WORK during the last ten (10) years.

SPECIAL INTERROGATORY NO. 93: State all facts RELATING TO any lawsuits, demand letters, or State of California, Contractors State License Board complaints, brought by any customer or property owner against YOU during the last ten (10) years RELATING TO WORK YOU performed.

SPECIAL INTERROGATORY NO. 94: IDENTIFY all PERSONS with knowledge of facts RELATING TO any lawsuits, demand letters, or State of California, Contractors State License Board complaints, brought by any customer or property owner against YOU during the last ten (10) years RELATING TO WORK YOU performed.

SPECIAL INTERROGATORY NO. 95: IDENTIFY all DOCUMENTS RELATING TO any lawsuits, demand letters, or State of California, Contractors State License Board complaints, brought by any customer or property owner against YOU during the last ten (10) years RELATING TO WORK YOU performed.

The Court finds Special Interrogatory numbers 90-95 are overbroad as to time and scope. The Court grants Defendant's motion in part. Special Interrogatory numbers 90-95 are narrowed to the same or similar work from January 1, 2018, to the date the Special Interrogatory was served on Defendant.

SPECIAL INTERROGATORY NO. 99: For each project on which YOU performed residential drainage WORK during the last ten (10) years, state all facts sufficient to indicate the address where the project occurred, and the nature of the WORK and approximate dates the WORK was performed.

SPECIAL INTERROGATORY NO. 100: For each project on which YOU performed residential drainage WORK during the last ten (10) years, IDENTIFY the PERSONS for whom YOU performed the WORK for.

SPECIAL INTERROGATORY NO. 101: For each project on which YOU performed French drain WORK during the last ten (10) years, state all facts sufficient to indicate the address where the project occurred, and the nature of the WORK and approximate dates the WORK was performed.

SPECIAL INTERROGATORY NO. 102: For each project on which YOU performed French drain WORK during the last ten (10) years, IDENTIFY the PERSONS for whom YOU performed the WORK for.

SPECIAL INTERROGATORY NO. 103: For each project on which YOU performed driveway concrete WORK during the last ten (10) years, state all facts sufficient to indicate the address where the project occurred, and the nature of the WORK and approximate dates the WORK was performed.

SPECIAL INTERROGATORY NO. 104: For each project on which YOU performed driveway concrete WORK during the last ten (10) years, IDENTIFY the PERSONS for whom YOU performed the WORK for.

SPECIAL INTERROGATORY NO. 105: For each project on which YOU performed retaining wall WORK during the last ten (10) years, state all facts sufficient to indicate the address where the project occurred, and the nature of the WORK and approximate dates the WORK was performed.

SPECIAL INTERROGATORY NO. 106: For each project on which YOU performed retaining wall WORK during the last ten (10) years, IDENTIFY the PERSONS for whom YOU performed the WORK for.

The Court finds Special Interrogatory numbers 99-106 are overbroad as to time and scope. The Court grants Defendant's motion in part. Special Interrogatory numbers 99-106 are narrowed to January 1, 2018, to the date the Special Interrogatory was served on Defendant. The Requests shall not include the disclosure of a third party's private financial information.

Inspection Demands

INSPECTION DEMAND NO. 18: All DOCUMENTS constituting marketing, advertising, or promotional materials used by YOU from January 1, 2020, to the present, including website pages, social media postings, online advertisements, flyers, business cards, and brochures, that reference or RELATE TO WORK, concrete work, drainage work, retaining walls, or similar services, whether under the names "Classic Concrete," "Evans Classic Concrete," "JD&E Services L.L.C.," or any other business name.

The Court finds Inspection Demand No. 18 is overbroad as to scope. The Court grants Defendant's motion in part. Inspection Demand No. 18 is narrowed to the same or similar work.

INSPECTION DEMAND NO. 19: All DOCUMENTS reflecting or evidencing social media posts, online reviews, or other publicly available online content created or controlled by YOU that depict or describe WORK at the SUBJECT PROPERTY or that YOU contend demonstrate YOUR experience or expertise in drainage design, French drains, concrete flatwork, or retaining walls.

The Court finds Inspection Demand No. 19 is overbroad as to time. The Court grants Defendant's motion in part. Inspection Demand No. 19 is narrowed to January 1, 2020, to the date the Inspection Demand was served on Defendant.

INSPECTION DEMAND NO. 20: All DOCUMENTS constituting contracts, proposals, bids, or estimates between YOU and any other customer from January 1, 2020, to the present for residential drainage WORK, French drains, driveway concrete, or retaining walls, sufficient to show the nature and frequency of similar WORK YOU performed.

The Court finds Inspection Demand No. 20 overbroad as to time and scope and unduly oppressive. The Court grants Defendant's motion in part. Inspection Demand No. 20 is narrowed to identify the nature, approximate date, and frequency of the same or substantially similar projects, with customer-identifying and financial information protected or redacted as appropriate from January 1, 2020, to the date the Inspection Demand was served on Defendant.

INSPECTION DEMAND NO. 21: All DOCUMENTS constituting invoices, receipts, or other documents reflecting the sale of drainage-related materials, catch basins, piping, and other

consumer goods to any customer from January 1, 2020, to the present, sufficient to show the nature and frequency of such sales.

The Court finds Inspection Demand No. 21 overbroad as to time and scope and unduly oppressive. The Court grants Defendant's motion in part. Inspection Demand No. 21 is narrowed to identify all sales of drainage-related materials, catch basins, piping, and other consumer goods, with customer-identifying and financial information protected or redacted as appropriate from January 1, 2020, to the date the Inspection Demand was served on Defendant.

INSPECTION DEMAND NO. 22: All DOCUMENTS constituting written complaints, claims, demand letters, or notices (formal or informal) made by any customer or property owner against YOU from January 1, 2018, to the present alleging defective WORK, defective drainage WORK, defective concrete WORK, unlicensed contracting, misrepresentation of licensing status, or similar conduct.

INSPECTION DEMAND NO. 23: All DOCUMENTS constituting pleadings, discovery responses, settlement agreements, or judgments in any prior or pending lawsuit or arbitration involving allegations of defective WORK, defective drainage WORK, defective concrete WORK, unlicensed contracting, or misrepresentation of contractor licensing status asserted against YOU from January 1, 2018, to the present.

INSPECTION DEMAND NO. 62: All DOCUMENTS identified in YOUR response to plaintiff Lauren Liimatta's Special Interrogatories (Set One) No. 92.

INSPECTION DEMAND NO. 63: All DOCUMENTS identified in YOUR response to plaintiff Lauren Liimatta's Special Interrogatories (Set One) No. 95.

Defendant's motion is denied as to Inspection Demand numbers 22, 23, 62, and 63.

Sanctions

Defendant's and Plaintiff's requests for sanctions are denied.

MOTION FOR PROTECTIVE ORDER – JARED EVANS

Defendant, Jared Evans ("Defendant"), moves for an order limiting Plaintiff, Lauren Liimatta ("Plaintiff"), Special Interrogatories, Set One, and Inspection Demands, Set One (collectively the "Requests") served on February 22, 2026. Defendant's motion originally had the following Requests at issue: Special Interrogatories numbers 87, 88, 89, 90, 91, 92, 96, 97, 98, 99, 100, 101, 102, 103, and Inspection Demands Nos. 7, 18, 19, 20, 21, 22, 23, 24, 25, 61, 62, 63. Defendant seeks sanctions in the amount of \$1,740.00.

The Status Report identifies all Special Interrogatory Requests remain at issue, as well as Inspection Demands Nos. 18, 19, 20, 21, 22, 23, 61, and 62. The Status Report did not explain the

amount of monetary sanctions sought and the reasons why as required by the Court's prior tentative ruling.

Special Interrogatories

SPECIAL INTERROGATORY NO. 87: State all facts RELATING TO any negative reviews, complaints, claims, expressions of concerns, or objections that YOU ever received from any customer or property owner RELATING to YOUR WORK during the last ten (10) years.

SPECIAL INTERROGATORY NO. 88: IDENTIFY all PERSONS with knowledge of facts RELATING TO any negative reviews, complaints, claims, expressions of concerns, or objections that YOU ever received from any customer or property owner RELATING to YOUR WORK during the last ten (10) years.

SPECIAL INTERROGATORY NO. 89: IDENTIFY all DOCUMENTS RELATING TO any negative reviews, complaints, claims, expressions of concerns, or objections that YOU ever received from any customer or property owner RELATING to YOUR WORK during the last ten (10) years.

SPECIAL INTERROGATORY NO. 90: State all facts RELATING TO any lawsuits, demand letters, or State of California, Contractors State License Board complaints, brought by any customer or property owner against YOU during the last ten (10) years RELATING TO WORK YOU performed.

SPECIAL INTERROGATORY NO. 91: IDENTIFY all PERSONS with knowledge of facts RELATING TO any lawsuits, demand letters, or State of California, Contractors State License Board complaints, brought by any customer or property owner against YOU during the last ten (10) years RELATING TO WORK YOU performed.

SPECIAL INTERROGATORY NO. 92: IDENTIFY all DOCUMENTS RELATING TO any lawsuits, demand letters, or State of California, Contractors State License Board complaints, brought by any customer or property owner against YOU during the last ten (10) years RELATING TO WORK YOU performed.

The Court finds Special Interrogatory numbers 87-92 are overbroad as to time and scope. The Court grants Defendant's motion in part. Special Interrogatory numbers 87-92 are narrowed to the same or similar work from January 1, 2018, to the date the Special Interrogatory was served on Defendant.

SPECIAL INTERROGATORY NO. 96: For each project on which YOU performed residential drainage WORK during the last ten (10) years, state all facts sufficient to indicate the address where the project occurred, and the nature of the WORK and approximate dates the WORK was performed.

SPECIAL INTERROGATORY NO. 97: For each project on which YOU performed residential drainage WORK during the last ten (10) years, IDENTIFY the PERSONS for whom YOU performed the WORK for.

SPECIAL INTERROGATORY NO. 98: For each project on which YOU performed French drain WORK during the last ten (10) years, state all facts sufficient to indicate the address where the project occurred, and the nature of the WORK and approximate dates the WORK was performed.

SPECIAL INTERROGATORY NO. 99: For each project on which YOU performed French drain WORK during the last ten (10) years, IDENTIFY the PERSONS for whom YOU performed the WORK for.

SPECIAL INTERROGATORY NO. 100: For each project on which YOU performed driveway concrete WORK during the last ten (10) years, state all facts sufficient to indicate the address where the project occurred, and the nature of the WORK and approximate dates the WORK was performed.

SPECIAL INTERROGATORY NO. 101: For each project on which YOU performed driveway concrete WORK during the last ten (10) years, IDENTIFY the PERSONS for whom YOU performed the WORK for.

SPECIAL INTERROGATORY NO. 102: For each project on which YOU performed retaining wall WORK during the last ten (10) years, state all facts sufficient to indicate the address where the project occurred, and the nature of the WORK and approximate dates the WORK was performed.

SPECIAL INTERROGATORY NO. 103: For each project on which YOU performed retaining wall WORK during the last ten (10) years, IDENTIFY the PERSONS for whom YOU performed the WORK for.

The Court finds Special Interrogatory numbers 96-103 are overbroad as to time and scope. The Court grants Defendant's motion in part. Special Interrogatory numbers 96-103 are narrowed to January 1, 2018, to the date the Special Interrogatory was served on Defendant. The Requests shall not include the disclosure of a third party's private financial information.

Inspection Demands

INSPECTION DEMAND NO. 18: All DOCUMENTS constituting marketing, advertising, or promotional materials used by YOU from January 1, 2020, to the present, including website pages, social media postings, online advertisements, flyers, business cards, and brochures, that reference or RELATE TO WORK, concrete work, drainage work, retaining walls, or similar services, whether under the names "Classic Concrete," "Evans Classic Concrete," "JD&E Services L.L.C.," or any other business name.

The Court finds Inspection Demand No. 18 is overbroad as to scope. The Court grants Defendant's motion in part. Inspection Demand No. 18 is narrowed to the same or similar work.

INSPECTION DEMAND NO. 19: All DOCUMENTS reflecting or evidencing social media posts, online reviews, or other publicly available online content created or controlled by YOU that

depict or describe WORK at the SUBJECT PROPERTY or that YOU contend demonstrate YOUR experience or expertise in drainage design, French drains, concrete flatwork, or retaining walls.

The Court finds Inspection Demand No. 19 is overbroad as to time. The Court grants Defendant's motion in part. Inspection Demand No. 19 is narrowed to January 1, 2020, to the date the Inspection Demand was served on Defendant.

INSPECTION DEMAND NO. 20: All DOCUMENTS constituting contracts, proposals, bids, or estimates between YOU and any other customer from January 1, 2020, to the present for residential drainage WORK, French drains, driveway concrete, or retaining walls, sufficient to show the nature and frequency of similar WORK YOU performed.

The Court finds Inspection Demand No. 20 overbroad as to time and scope and unduly oppressive. The Court grants Defendant's motion in part. Inspection Demand No. 20 is narrowed to identify the nature, approximate date, and frequency of the same or substantially similar projects, with customer-identifying and financial information protected or redacted as appropriate from January 1, 2020, to the date the Inspection Demand was served on Defendant.

INSPECTION DEMAND NO. 21: All DOCUMENTS constituting invoices, receipts, or other documents reflecting the sale of drainage-related materials, catch basins, piping, and other consumer goods to any customer from January 1, 2020, to the present, sufficient to show the nature and frequency of such sales.

The Court finds Inspection Demand No. 21 overbroad as to time and scope and unduly oppressive. The Court grants Defendant's motion in part. Inspection Demand No. 21 is narrowed to identify all sales of drainage-related materials, catch basins, piping, and other consumer goods, with customer-identifying and financial information protected or redacted as appropriate from January 1, 2020, to the date the Inspection Demand was served on Defendant.

INSPECTION DEMAND NO. 22: All DOCUMENTS constituting written complaints, claims, demand letters, or notices (formal or informal) made by any customer or property owner against YOU from January 1, 2018, to the present alleging defective WORK, defective drainage WORK, defective concrete WORK, unlicensed contracting, misrepresentation of licensing status, or similar conduct.

INSPECTION DEMAND NO. 23: All DOCUMENTS constituting pleadings, discovery responses, settlement agreements, or judgments in any prior or pending lawsuit or arbitration involving allegations of defective WORK, defective drainage WORK, defective concrete WORK, unlicensed contracting, or misrepresentation of contractor licensing status asserted against YOU from January 1, 2018, to the present.

INSPECTION DEMAND NO. 61: All DOCUMENTS identified in YOUR response to plaintiff Lauren Liimatta's Special Interrogatories (Set One) No. 89.

INSPECTION DEMAND NO. 62: All DOCUMENTS identified in YOUR response to plaintiff Lauren Liimatta's Special Interrogatories (Set One) No. 92

Defendant's motion is denied as to Inspection Demand numbers 22, 23, 61, and 62.

Sanctions

Defendant's and Plaintiff's requests for sanctions are denied.

TENTATIVE RULING #12:

1. DEFENDANT'S MOTION FOR PROTECTIVE ORDER – JOHN WILLIAM EVANS

DEFENDANT'S MOTION IS GRANTED IN PART AS TO SPECIAL INTERROGATORY NUMBERS 90-95 AND 99-106, AND INSPECTION DEMAND NUMBERS 18-21 AS DESCRIBED IN THE TENTATIVE RULING. DEFENDANT'S MOTION IS DENIED AS TO INSPECTION DEMAND NUMBERS 22, 23, 62, AND 63. DEFENDANT'S AND PLAINTIFF'S REQUESTS FOR SANCTIONS ARE DENIED.

2. DEFENDANT'S MOTION FOR PROTECTIVE ORDER – JARED EVANS

DEFENDANT'S MOTION IS GRANTED IN PART AS TO SPECIAL INTERROGATORY NUMBERS 87-92 AND 96-103, AND INSPECTION DEMAND NUMBERS 18-21 AS DESCRIBED IN THE TENTATIVE RULING. DEFENDANT'S MOTION IS DENIED AS TO INSPECTION DEMAND NUMBERS 22, 23, 61, AND 62. DEFENDANT'S AND PLAINTIFF'S REQUESTS FOR SANCTIONS ARE DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.